

Cornwall Local Plan Strategic Policies 2010 –
2030 (Adopted November 2016)

Sustainability Appraisal (incorporating Strategic
Environmental Assessment)

Adoption Statement

November 2016

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1. Introduction

1.1 The Cornwall Local Plan was adopted on 22nd November 2016. Further details of the adoption process and supporting documents can be found on the Cornwall Council website at <https://www.cornwall.gov.uk/planning-and-building-control/planning-policy/adopted-plans/#localPlan>

1.2 The Cornwall Local Plan is accompanied by a Sustainability Appraisal (SA) Report which incorporates requirements for a Strategic Environmental Assessment (SEA). This combined assessment appraises the social, economic and environmental effects of implementing the Local Plan, and reasonable alternatives, with the purpose of promoting the objectives of sustainable development and ensuring their integration within the Local Plan. Cornwall Council, as the body which prepares and adopts the Local Plan, is classified as the 'Responsible Authority' under the SEA Regulations and prepared the SA.

1.3 SA is required by the Planning and Compulsory Purchase Act 2004 which requires consideration of sustainability effects for all emerging Development Plan Documents. European Directive 2001/42/EC (often known as the SEA Directive.) This requires the preparation of an environmental report that considers the significant environmental effects of a plan or programme. This Directive is transposed into UK law by The Environmental Assessment of Plans and Programmes Regulations 2004: Statutory Instrument 2004 No. 1633 (The SEA Regulations).

1.4 The SEA Regulations (Reg 16) specify that 'as soon as reasonably practicable after the adoption of a plan or programme for which an environmental assessment has been carried out under these Regulations, the responsible authority shall...bring to the attention of the public...a statement containing the following particulars...

a) how environmental considerations have been integrated into the plan or programme;

b) how the environmental report has been taken into account;

c) how opinions expressed in response to—

(i) the invitation referred to in regulation 13(2)(d);

(ii) action taken by the responsible authority in accordance with regulation 13(4), have been taken into account;

d) how the results of any consultations entered into under regulation 14(4) have been taken into account;

e) the reasons for choosing the plan or programme as adopted, in the light of the other reasonable alternatives dealt with; and

f) the measures that are to be taken to monitor the significant environmental effects of the implementation of the plan or programme.

1.5 This information is presented in the following sections

2. How have sustainability, and in particular, environmental considerations been integrated into the Cornwall Local Plan?

2.1 The preparation of the Sustainability Appraisal is an iterative process and is an integral part of preparing the Local Plan. This process incorporated Strategic Environmental Assessment (SEA) and involved the following key stages:

- a) preparing an SA Report on the likely significant effects of various iterations of the draft Local Plan;
- b) carrying out consultation on the SA Report;
- c) taking into account the SA Report and the results of consultation in decision making; and
- d) providing information when the Local Plan is adopted and showing how the results of the environmental assessment have been taken into account.

2.2 SA Scoping Report

2.3 Reg 12 of the SEA Regulations requires decisions to be made on the 'scope and level of detail of the information' to be included in the SA Report. Cornwall Council worked with internal and external specialists to develop a topic based Scoping Report, published in June 2010, to establish baseline information and sustainability objectives. The consultation bodies - Natural England, Environment Agency and English Heritage - are required to be consulted on this scoping work.

2.4 In the first stage the Local Development Framework Scoping Report was prepared collaboratively by a team of expert officers specialising in different topics. Stakeholder workshops were held between December 2008 and March 2009. The draft Scoping Report was approved for consultation by the Local Development Framework sub group (March 2009) and a four week stakeholder consultation was launched on 20th May 2009, including consultation of the statutory bodies.

2.5 Planning Policy Advisory Panel (PPAP) endorsed the Scoping Report with amendments in response to consultation in November 2009 and the final draft was approved in January 2010. The baseline information in the Scoping Report was updated in May 2012 and published in June 2012. The Scoping Report can be accessed on the Council's website.

2.6 SA Report Various iterations of the SA Report were produced and consulted on, including assessments of modifications to the Local Plan recommended before and after the examination in

public. Each of these documents outline the findings of the assessment of effects of reasonable alternatives, and include details of mitigation measures to reduce predicted adverse effects and measures to increase beneficial effects. Recommendations are made as to which reasonable alternatives are preferred in sustainability terms and how proposed policies could be improved.

2.7 Details of all iterations of the SA Report, and where these can be accessed, are provided below:

- **Core Strategy Options:** A Sustainability Appraisal and Habitats Regulations Assessment of the Core Strategy Options Report was carried out and published alongside the Planning Future Cornwall options consultation from 7th February to 28th April 2011.
- **Core Strategy Preferred Approach:** A Sustainability Appraisal and of the Core Strategy Preferred Approach was carried out and the findings published in the Core Strategy Preferred Approach Sustainability Appraisal Report, which accompanies the Our Preferred Approach for a Core Strategy consultation documents; consultation was from 9th January to 2nd March 2012..
- **Strategic Policies: Pre Submission:** A [Sustainability Appraisal: Pre Submission Version Report](#), an [Addendum to Sustainability Appraisal: January 2013 Update](#), an [Addendum to Sustainability Appraisal: March 2013 Update to Local Plan Pre Submission Consultation Version](#) was prepared to inform and shape the production of the Cornwall Local Plan: Strategic Policies Pre Submission Version and consultation ran from 11th March to the 22nd April 2013.
- **Strategic Policies: Submission:** The [Sustainability Appraisal Final Report](#) was produced to accompany the submission version Cornwall Local Plan: Strategic Policies, incorporating the Addendum reports and the assessment of the schedule of focussed changes with consultation from 17th March to the 28th April 2014.
- The Sustainability Appraisal was further updated to inform the Proposed Schedule of Further Focused Changes to the Cornwall Local Plan Strategic Policies Proposed Submission Document – 2010-2030 (March 2014) and Schedule of Focused Changes (August 2014.) The latest [Sustainability Appraisal](#) and Technical Annex [Part 1](#), [Part 2](#), [Part 3](#), [Part 4](#) and [Part 5](#) were published in January 2016. A [Non Technical Summary](#) of the Sustainability Appraisal report is also available. Consultation ran from 25th January until 7th March 2016

2.8 The findings and recommendations outlined in the various SA Reports listed above were taken into account through the amending and finalising the Local plan. Sustainability and environmental considerations are integrated in the wide-ranging nature of Local Plan policies.

3. How has the Sustainability Appraisal been taken into account during the preparation of the Local Plan?

3.1 Table 8 of the SA Final Report (November 2014) presents the appraisal findings and recommendations. The appraisal tables describe and evaluate the likely significant effects of implementing the plan against each of the 19 sustainability objectives. Mitigation measures and enhancements are also suggested. Table 9 lists the recommendations arising from the appraisal, details the planners' responses to the SA findings and lists the changes made to the Local Plan in response to these recommendations.

3.2 The SA report addendum (January 2016) appraises the update to the Local plan which addresses concerns raised by the Inspector in his preliminary findings in stage 1 of the Local plan examination, June 2015. Part 2 of the report presents the appraisal findings in relation to each of the Sustainability Themes identified in the Scoping Report. The concerns related principally to the level of growth and the distribution of that growth. The SA Addendum focussed on four options for distribution, examines reasonable alternatives for each Community network area and then describes how Cornwall Council has taken these factors into account.

4. How have the results of any consultation entered into under Regulation 14(4) been taken into account?

4.1 Regulation 14(4) relates to where the Secretary of State receives a request from another EU Member State an indication that it wishes to enter into consultations before the adoption, or submission, of a plan or programme. No such request was received and therefore no additional consultation of this nature was undertaken.

5. How have opinions expressed in response to consultations on the Sustainability Appraisal Report with the Consultation Bodies and the public been taken into account?

5.1 An SA Report was published with each consultation version of the Local Plan (formerly the Core Strategy) since 2010 and the Consultation Bodies and public were invited to comment on each version. In addition, there have been several SA addendums produced in response to Local Plan modifications, both before and after the Examination in Public hearing sessions. These were also consulted on.

5.2 At each stage the Council prepared a consultation report detailing comments received on the Local Plan documents, including the SA, and how the Council responded to them. The consultation responses and a report of action to be taken in response to them are listed below :

Core Strategy Options Consultation 7th February – 29th April 2011

SA response report: <http://www.cornwall.gov.uk/media/3639169/SA-Response-Report-1-.pdf>

Core Strategy Preferred Approach Consultation Report, incorporating SA response report: <http://www.cornwall.gov.uk/media/3639918/Complete-Core-Strategy-Pref-App-consultation-report.pdf>

Pre-submission Consultation 11th March - 22nd April 2013

Response report: [Pre-submission Response Report](#)

Proposed Submission consultation 17th March 2014 - 28th April 2014

Statement of representations:

<http://www.cornwall.gov.uk/media/6162119/Statement-of-representations-March-2014.pdf>

5.3 Consultation with the Consultation Bodies and the public also took place on the SA Scoping Report. This included a stakeholder workshop on 9th December 2008 and public consultation in May/June 2009.

5.4 Key consultation responses were received from the Consultation Bodies. At Examination the inspector placed considerable weight on the responses received from Natural England, which incorporated concerns raised by the Cornwall AONB unit. In response to these concerns, the SA Report Addendum was produced, which appraised the key environmental constraints around main towns and villages and for larger Strategic housing Land Availability Assessment (SHLAA) sites.

6. What are the reasons for choosing the Local plan as adopted, in light of other reasonable alternatives considered?

6.1 The Council has, through the SA process, considered reasonable alternatives to the Local Plan Policies. The assessment of these, and reasons for choosing the approach outlined in the Local Plan, are presented in Chapters 8 and 9 of the SA Final Report. Sections 4.2 to 4.6 of the SA Addendum report appraise the top down approach to distribution options for development in Cornwall. Within section 4.6 a response, detailing Cornwall Council's approach taken for distribution within each Community Network Area is set out. Section 4.7 summarises the approach taken in choosing between a focus on a smaller or larger number of main towns.

6.2 In addition to the SA Report Addendum, technical annexes provided a bottom up appraisal of analysis of the key constraints present around each of

the larger towns and villages in Cornwall and the key environmental constraints present affecting the larger SHLAA sites (over 100 dwelling capacity) in Cornwall. The purpose of the 'bottom up' analysis was to aid the consideration of appropriate locations for strategic scale development to be taken forward in Cornwall for the purposes of the Local Plan. This was designed to support the appraisal of the 'top down' reasonable alternatives considered in Sections 4.2 to 4.7 and the analysis was actively taken into account by plan makers through plan development.

6.3 Cornwall's Local Plan Spatial Strategy is to support all communities. The approach to housing distribution starts on the basis of a pro rata distribution; the level of growth is linked to the scale of the existing community. However, while this forms the starting point for the approach, the level of growth also needs to reflect a number of other factors which influence whether the level of development should be increased or reduced from pro rata. These factors are:

- Environmental and policy constraints;
- Higher than pro-rata need for affordable housing;
- Whether economic objectives would result in a need for additional housing; and
- Assessment of deliverability (based on previous rates and land availability).

Informed by the appraisal, the preferred strategy takes these into account create an adjusted distribution.

6.4 The SA Report Addendum concludes that no mitigation measures or recommendations have been proposed relating to the potential significant effects identified. This reflects the carefully designed spatial strategy and robust policy approaches which are put forward through the Strategic Policies. In particular the Strategic Policies will help limit the magnitude and scale of the potential negative environmental effects associated with the delivery of in the region of 52,500 houses and 704,000 sq. metres of employment floorspace in the period to 2030.

7. What measures are to be taken to monitor the significant effects of the implementation of the Local Plan?

7.1 The SEA Directive requires the significant environmental effects of plans and programmes to be monitored, in order to identify at an early stage unforeseen adverse effects and to be able to take appropriate action where necessary. Monitoring of significant effects will also include social and economic effects that have been predicted through the SA.

7.2 Table 7.1 of the SA Addendum Report outlines suggestions for a monitoring programme for measuring the Strategic Policies' implementation in relation to the areas where the SA has identified significant opportunities for an

improvement in sustainability performance to arise. It also seeks to monitor where uncertainties relating to the appraisal findings arose and suggests where monitoring is required to help ensure that the benefits of the Local Plan are achieved through the planning process.

7.3 The purpose of monitoring is to measure the significant sustainability effects of a plan, as well as to measure success against the plan's objectives. It is therefore beneficial if the monitoring strategy builds on monitoring systems which are already in place. To this end, many of the indicators of progress chosen for the SA require data that is already being routinely collected at a local level by Cornwall Council and its partner organisations. It should also be noted that monitoring can provide useful information for future plans and programmes.

7.4 The Cornwall Monitoring Report is available online:

<https://www.cornwall.gov.uk/environment-and-planning/planning/planning-policy/adopted-plans/cornwall-monitoring-report/>